

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Judge Pro Tem Peter MacLaren
Courtroom 8

627 W. 21st Street, Merced

Wednesday, August 19, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-00553	Pedro Canela vs City of Merced, et al.
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Motion to Withdraw and Amend Admission No(s) 5 Through 12

The Motion to Withdraw and Amend Responses to Requests for Admission No(s) 5 Through 12 is DENIED.

This is the sixth time this matter has come before the Court. The initial Motion to Vacate the Order to Deem Defendant City of Merced's Request for Admissions Set Two Admitted was Denied Without Prejudice by Judge McCabe on April 26, 2024. A second Motion to Withdraw and Amend Responses to Requests for Admissions No(s) 5 through 12 was denied by Judge McCabe on June 12, 2024. A third Motion to Withdraw and Amend Responses to Requests for Admissions No(s) 5 through 12 was granted by Judge Pro Tem Peter MacLaren on July 1, 2024, but, on April 9, 2025, in response to a subsequent Motion by Defendant City of Merced to Reinstate Prior Order Deeming Requests for Admission Set Two as Admitted, Judge Pro Tem Peter MacLaren reconsidered the July 1, 2024 ruling and denied the motion to withdraw, thereby granting the motion to reinstate, citing *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.13, 31-32. Judge Pro Tem Peter MacLaren denied a subsequent motion to reconsider the April 9, 2025, ruling on July 10, 2025. The instant Motion to Withdraw and Amend Responses to Requests for

Admission No(s) 5 through 10, is essentially a second motion to reconsider the July 1, 2024, ruling, but does not meet any of the requirements of CCP § 1008, and therefore is DENIED. More importantly, the instant motion does not address the grounds on which the July 1, 2024 ruling was based, what this court views as controlling precedent, *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.13, 31-32 which stated:

“[T]he ‘person to be served’ has the burden of notifying the court of any change of address, and failure so to do does not enable him to claim improper notice.” (*Bethlahmy v. Customcraft Industries, Inc.* (1961) 192 Cal.App.2d 308, 310, 13 Cal.Rptr. 310.) Even under the more lenient section 473, subdivision (b), “[w]hen a default is the result of one party flouting [the California Rules of Court] or failing to exercise diligence to ascertain what the law requires of them, trial courts ... should not ... grant that party relief from default.” (*McClain v. Kissler* (2019) 39 Cal.App.5th 399, 404-405, 424, 251 Cal.Rptr.3d 885 (McClain).) Indeed, mistake is not a ground for relief when it “ ‘is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law ...’ ” (*Henderson v. Pacific Gas & Electric Co.* (2010) 187 Cal.App.4th 215, 229-230, 113 Cal.Rptr.3d 692.)

(*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.13, 31-32.)

Assuming everything the Plaintiff says is true, that he became homeless and had no contact with his prior attorney, and therefore no knowledge that his prior attorney had withdrawn due to inability to communicate, that his prior attorney misrepresented in the attorney’s motion to withdraw that he had verified Plaintiff’s then current address, that Plaintiff did not know that requests for admission had been served, or that a motion to deem matter admitted and been filed and served, and that he inadvertently failed to supplement prior discovery by providing a new current address, the fact remains that Plaintiff knew that he was homeless and he knew that he was no longer receiving mail delivered to any address provided to his prior attorney or to the court. Plaintiff could have set up a Post Office Box or arranged with a friend to receive court filings on his behalf and then notified the court and opposing party of the address where he could be served. He did not do so. While the Court is well aware of the policy for resolving issues on the merits, that policy is thwarted when a party fails to provide an address for service, because nothing can be resolved on the merits when one party elects to be absent himself from the litigation. Under those circumstances, controlling precedent establishes that a party who fails to provide notice of a change in address is not permitted to claim improper notice. (See *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.13, 31 [quoting *Bethlahmy v. Customcraft Industries, Inc.* (1961) 192 Cal.App.2d 308, 310.]

Accordingly, The Motion to Withdraw and Amend Responses to Requests for Admission No(s) 5 Through 12 is DENIED.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 19, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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24CV-05177	Evergreen Bank Group vs. Sylvan Ramirez
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Review Hearing – Status of Default

Appearance required. The Court granted Plaintiff's motion for a writ of possession after hearing on September 15, 2025, and Defendant's default was entered on October 9, 2025. Appear to address the status of default judgment. If Plaintiff files a request for default judgment or a request for dismissal prior to the hearing date, the hearing will be vacated.

25CV-00919	Robert Maldonado, et al. vs. Solari Enterprises, Inc., et al.
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Case Status Review

Appearance required. Appear to address status of defendant and cross-defendant America Progreso Meadows, LLC.